

		The only remaining issue is sanctions. Here, the imposition of over \$14,000 in discovery sanctions would be “unjust”. Not only is the requested amount clearly overreaching for three simple motions to compel, but Plaintiff established that her inability to respond was due to a family emergency. (See Declaration(s) of Plaintiff Simmons¶8.) Therefore, the Court will not order sanctions. <i>Defendant to give notice.</i>
106	Lam vs. Robert Mullins International, 24-01438837	Defendant Robert C. Mullins (“Defendant”) demurs to the entire Complaint. The Complaint contains the following six causes of action: (1) breach of contract, (2) negligent misrepresentation, (3) breach of fiduciary duties, (4) breach of implied covenant of good faith and fair dealing, (5) negligent infliction of emotional distress, (6) violation of Business & Professions Code section 17200 et seq. All causes of action are asserted against all Defendants. The Complaint was filed on 11/08/2024. On 08/14/2025, Plaintiffs amended their Complaint to add Robert C. Mullins as Doe Defendant 1. (ROA 51.) Defendant argues that Plaintiffs’ first cause of action for breach of contract fails because Plaintiffs have not alleged a contract between Defendant Robert Mullins and Plaintiffs. Similarly, Defendant argues that the second, third, fourth, fifth, and sixth causes of action fail against Defendant Robert Mullins because Plaintiffs have not alleged any wrongs that Defendant Robert Mullins committed in his individual capacity. The Court agrees. Exhibit A to the operative Complaint is an “IMMIGRATION CONSULTANT SERVICE AGREEMENT” between Robert Mullins International (RMI), called Immigration Consultant,” and Dai Trang LAM, called “client.” Thus, the only contracting parties are Plaintiff Dai Trang Lam and Defendant Robert Mullins International and therefore

		there is no Contract between Plaintiffs and Defendant Robert C. Mullins. The Complaint also lacks any allegations establishing fact sufficient to support and alter ego theory of liability. Importantly, Plaintiff's third cause of action for breach of fiduciary duties, fourth cause of action for breach of implied covenant of good faith and fair dealing, and sixth cause of action for violation of Business & Professions Code section 17200 et seq. all reply on a presupposed a relationship between Plaintiff and Defendant Robert Mullins based on the contract at issue in the Complaint. As discussed, however, no such relationship has been alleged between Plaintiffs and Defendant Robert Mullins. The Complaint also lacks allegations regarding any wrongful misrepresentations or acts causing negligent infliction of emotional distress that were committed by Defendant Robert Mullins in his individual capacity. For the reasons discussed above, Defendant Robert C. Mullins's Demurrer is SUSTAINED in its entirety WITH 20 DAYS' LEAVE TO AMEND. In making this ruling, the Court is mindful that it reached the opposite conclusion in May 2025 as to Defendant Hai Minh Le. Plaintiff may choose to stipulate with Defendant Hai Minh Le as to the following: Plaintiff may amend the complaint as to Hai Minh Le as well, and the answer by Hai Minh Le is stricken and Hai Minh Le may file a new responsive pleading after the amended complaint is filed and served. Alternatively, Defendant Hai Minh Le may file a motion for judgment on the pleadings. The Case Management Conference is continued to August 13, 2026 at 1:30 p.m. <i>Moving defendant to give notice.</i>
107	Alvidrez vs. Covetrus Software Services, LLC, 25-01459002	Plaintiff Michael Alvidrez ("Plaintiff") moves for leave to amend his Complaint pursuant to Labor Code section 2699.3 and Code of Civil Procedure section 473 to add a PAGA cause of action. Defendant Covetrus Software Services, LLC ("Defendant") opposes the motion.